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How Do Nationalist Leaders Respond to International Human Rights Criticisms?

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ABSTRACT

Nationalist leaders are believed to reject international human rights criticisms in a blanket fashion. However, I argue that they are likely to be highly selective in accommodating or dismissing such criticisms based on the kind of human rights issue on the table. Nationalist leaders refuse to yield to the pressure of international human rights organizations in the name of national sovereignty. However, they may be incentivized to entertain human rights recommendations on issues that are relatively inconsequential to their political survival. They may be even more receptive to international pressure on matters such as human rights education and training, perceiving opportunities to score points with the international community while furthering their domestic political agenda. To test these arguments, I gather data from the Universal Periodic Review and two human rights cases (Sri Lanka and Finland). The findings of this study provide an important clue about which specific human rights areas the international community should focus on when nationalist leaders are transgressors.

The international community has shown a serious commitment to human rights protection for more than half a century. Indeed, it has raised awareness of human rights and social justice issues while striving to hold human rights violators accountable. However, the global rise of nationalism threatens to undermine the consensus on international human rights standards and norms. For instance, Michelle Bachelet, the UN High Commissioner for Human Rights, states that nationalism is damaging to many of the freedoms, rights and protections enshrined in the 1948 Universal Declaration of Human Rights (Schlein 2018). Han nationalism, for example, has been responsible for violating the human rights of Uyghurs, the indigenous people living in China's largest province, Xinjiang. Myanmar's Buddhist nationalism has incited anti-Muslim violence against hundreds of thousands of Rohingya, an ethnic minority. As COVID-19 makes public health one of the most critical human rights issues, many UN human rights experts caution that 'there is no room for nationalism or profitability in decision-making about access to vaccines, essential tests and treatments, and all other medical goods, services, and supplies that are at the heart

of the right to the highest attainable standard of health for all' (Mofokeng et al. 2020).

Unfortunately, the existing literature is lacking in quantitative explorations of how countries respond to international human rights criticism, particularly in relation to the varying responses of nationalist leaders. Heiskanen (2021, 244) points out that the limited literature may be due to the struggle of international relations scholars to incorporate nations and nationalism into their analysis, despite their central role in contemporary international politics. Similarly, Wimmer (2023, 8) notes that although there is a growing understanding of nationalism's varied consequences, there is still much to learn. Although some studies have begun to assess the accommodation of human rights criticisms (e.g., Terman and Voeten 2018), they have overlooked the impact of nationalism and nationalist leaders.

I argue that nationalist leaders respond selectively to international human rights criticisms. Due to their nationalist beliefs, they may choose to accept or reject specific human

rights recommendations from other countries. By portraying international human rights standards as an infringement on national sovereignty, nationalist leaders can rally domestic support from their ethnic group to push back against such international criticisms. With the backing of the dominant ethnic group, which forms their main support base, they can effectively resist international pressure and maintain their rule without improving the human rights situation for other ethnic groups.

I argue in probabilistic, rather than deterministic, terms. While engaging in nationalist politics to legitimize their rule, political leaders are likely to respond to human rights issues selectively. Nationalist leaders differentiate between human rights issues that threaten their regime and innocuous ones and then decide which ones they respond to (un)favourably. For example, they are likely to decline recommendations involving ethnic minority rights because they have, since taking office, legitimized their rule through discriminatory actions against ethnic minorities. To gather empirical evidence, I employ mixed methods research.

I first conduct an empirical analysis of 54 human rights issues that 193 countries faced from 2008 to 2016. I use the Universal Periodic Review (UPR)¹ to identify human rights violations. The UPR was established by the UN Human Rights Council in 2006 to conduct a periodic review of the human rights records of all 193 UN member states. As part of public scrutiny, the UPR provides the reviewed state with an opportunity to respond to each human rights recommendation proposed by reviewing states. I hypothesize that nationalist leaders should have significantly different incentives when dealing with disfavoured ethnic groups than their non-nationalist counterparts. I find supporting evidence that, compared to their non-nationalist counterparts, nationalist leaders are more likely to reject international human rights criticisms concerning the rights of indigenous peoples.²

I also discover that nationalist leaders are likely to agree to ‘easy’ human rights protections, such as providing human rights education and training.³ However, I also observe that nationalist leaders are likely to refuse to improve the physical integrity rights of ethnic others who are subjected to detention and torture, as these methods are essential to prolong their regime. By rejecting international human rights recommendations, nationalist leaders continue to ‘adopt authoritarian methods to capture and maintain power’ (Bieber 2019). In contrast to nationalist leaders, authoritarian leaders do not necessarily exhibit ethnocentric national attitudes. Josip Tito of Yugoslavia maintained an inclusive attitude towards all Yugoslav nationalities, including Bosnians and Croats, even though he was known for his authoritarian leadership. Park Chung-hee, who ruled South Korea with an iron grip for 18 years, did not play the nationalist card as the population was over 99% ethnically Korean. Radkiewicz’s (2016) survey studies also reveal that authoritarian people are not necessarily ethnocentric (for a dissenting view, see Altemeyer 2006). Authoritarian leaders use ‘state power against any alleged domestic enemies—from “Communist infiltrators” and “violent rioters” to criminals, terrorists, and undocumented immigrants—in a manner that undermines liberal rights

regimes and democratic norms and institutions’ (Bonikowski et al. 2022, 1728). Conversely, nationalist leaders may arise in either democratic or non-democratic societies and employ repressive measures *along ethnic lines*, aggressively targeting and persecuting ethnic minorities or even majorities. They insist that authoritarian methods are necessary to counter the hostility of unfavored ethnic groups. Examples include the mistreatment of Aung San Suu Kyi against Rohingya Muslims in Myanmar, Xi Jinping against Uyghurs and Vladimir Putin against Chechens. These nationalist leaders refuse to accept international human rights recommendations under the pretext of preserving and protecting the identity of the dominant ethnic group in the nation.

Following this quantitative analysis are two case studies: Sri Lankan nationalist leaders and Finnish political leaders. These two cases confirm that leaders’ nationalism matters in their responses to international pressure. Both quantitative and qualitative evidence indicate that the more nationalistic political leaders are, the more they conform to a specific pattern of rights protection. The overall findings of this study suggest that the international community needs to develop a programme with special incentives to encourage nationalist leaders to respond to certain human rights conditions favourably.

1 | What Is Nationalism?

Scholars of nationalism do not uniformly equate nationalism with ethnic politics (Hale 2004; Mylonas and Tudor 2023, 6–7 and 43). Some scholars, such as Connor (1994), Hechter (2000), and Smith (1999), link nationalism to ethnicity.⁴ For example, Smith (1999, 18) defines nationalism as ‘the expression of aspirations by various social groups to create, defend or maintain nations ... by drawing on the cultural resources of pre-existing ethnic communities and categories’. The 1990s Yugoslav conflicts and post-Communist regimes’ trajectories highlighted the close association between nationalism and ethnicity. However, other scholars such as Anderson (1983), Gellner (1983) and Greenfeld (1992) contend that nationalism is not always ethnic. For example, Anderson (1983, 6) views the nation as ‘an imagined political community – and imagined as both inherently limited and sovereign’.

In response to disagreements and the complex nature of nationalism, scholars have sought to create ideal-type distinctions. They have particularly focused on distinguishing between civic and ethnic forms of nationhood (Zimmer 2003). Civic nationalism upholds traditional liberal values of freedom, tolerance, equality and individual rights, and is not rooted in ethnocentrism. On the other hand, ethnic nationalism defines the nation and nationality in terms of ethnicity. Proponents of ethnic nationalism believe that ‘nations are defined by a shared heritage, which usually includes a common language, a common faith, and a common ethnic ancestry’ (Muller 2008, 20).⁵

The traditional division between ethnic and civic nationalism has been called into question by several scholars. Brubaker (1999), Nielsen (1996), Simonsen and Bonikowski (2020) and Tamir (2019) argue that this dichotomy

is no longer an effective way to understand nationalism due to its simplicity. Additionally, Mylonas and Tudor (2023) propose that the distinction between civic and ethnic nationalism should be viewed as a spectrum of ascriptiveness. They define ascriptiveness as ‘an identity that is socially assigned through birth (hereditary) rather than chosen’ (42). According to their framework, highly ascriptive national narratives are often categorized as ethnic, whereas national narratives that instead underscore principles or ideals among all citizens irrespective of any ascriptive identity are civic.

For the purposes of this quantitative research, I define nationalism through an ethnic orientation, as noted in Connor (1994), Hechter (2000) and Smith (1999). This is because a single journal article cannot quantify and test all the varying concepts of nationalism. This study pays close attention to nationalist state leaders who are imbued with ethnic nationalism and thus appeal to a single national identity within the state’s boundaries to bolster political legitimacy (see Choi 2025; Ko and Choi 2022; Kwon and Kim 2025). The rationale is that state leaders’ policy decisions are more critical in shaping human rights conditions than other actors, such as ethnically conscious masses or political parties. I present nationalist leaders as the ultimate decision-makers in the process of human rights development (Breuilly 1993; Tilly 1994). I do not explore other types of nationalist leaders (e.g., civic-minded ones) for two reasons. First, examining these types would be a book-length project. Second, I have no coherent theory and suffer from a lack of related data for a large number of countries over an extended period.

Nationalist leaders are ones who seek to protect and preserve the sovereignty of historically, ethnically or religiously distinctive peoples. Consequently, they foster a nationalist state that perceives other ethnic groups, nations and/or international organizations to be hostile and/or inferior (see Ko 2023; Mearsheimer 2018; Tajfel 1982; Wimmer 2023). Nationalist leaders favour the dominant ethnic group on the domestic front and defend the nation’s sovereignty against global interests on the international front. They assert that the nation contains people who are ethnically inferior to their favoured group and should thus be treated differently. They mistreat, persecute and murder ethnic others, including indigenous people, immigrants and refugees. As a result, disfavoured ethnic people become fearful for their continued existence and turn to political violence to address grievances. When the state’s monopoly on legitimate violence falls under the control of a single favoured ethnic group, disfavoured ethnic groups within the state resort to political violence. Because nationalist leaders legitimize their power by victimizing ethnic others, they are bound to commit serious violations and abuses of human rights and to resist international human rights pressure.

It is important to note that nationalist leaders have emerged across continents, regardless of the regime type. Nationalist leaders, such as Donald Trump, Narendra Modi, Viktor Orbán, Recep Tayyip Erdoğan, and Rodrigo Duterte, represent a diverse political spectrum. They have gained prominence in the media by promoting nationalism and national sovereignty while rejecting liberal democracy and ethnic diversity (Bieber 2019; Fuller 2016; Walt 2011).

2 | Nationalist Leaders: The Conventional Wisdom

When political leaders employ nationalism as their legitimization strategy for gaining popular support, their nationalist commitments reshape foreign policy initiatives. Nationalist leaders prioritize the preservation of national sovereignty over international cooperation (Cheng 2012; Gordenker 1969). Because nationalist leaders tend to equate sovereignty with ‘non-intervention in the internal affairs of [their] states’ (Krasner 1999, 20), they perceive any international pressure or interference in their internal affairs as a severe encroachment on national sovereignty. They do not welcome international human rights organizations that ‘impinge on national sovereignty and expose the country to the dangers of foreign influence ... represent the preferences of globalized elites’ (Copelovitch and Pevehouse 2019, 178). As a result, nationalist leaders are likely to deny accusations of human rights abuses brought by global organizations and seek to deflect international human rights criticisms. They argue that human rights are exclusively internal matters, to be determined according to national conditions. In the worst-case scenario, they may even contemplate withdrawing their country’s membership(s) in international organizations to clearly signal their preference for policy independence (Choi 2022). An example of this occurred in 1955 when Governor-General Earnest Jansen of South Africa withdrew from UNESCO after the organization circulated anti-apartheid publications.

Given that nationalist leaders prioritize national sovereignty over international influence, I hypothesize that nationalist leaders tend to resist international pressure to respect human rights.

Nationalist Leader Hypothesis: Nationalist leaders are more prone to reject international human rights standards than their non-nationalist counterparts.

3 | Sensitivity of Human Rights Issues

When responding to international pressure aimed at improving human rights conditions, the target state typically faces two options: accommodation or rejection. The probability of the target state accommodating international recommendations depends on whether addressing the specific human rights issues at hand will help avoid unnecessary external confrontations and promote the regime’s internal stability (Risse-Kappen et al. 1999). The target state has no incentive to dispute regime-compatible recommendations that are ‘unlikely to threaten their imminent survival by causing regime collapse or overthrow’ (Bush 2015, 60). However, the target state is more likely to challenge unfavourable issues and refuse to remedy its human rights situations. This decision is often driven by the belief that foreign powers have a malicious intention to tarnish its reputation and image (Terman and Voeten 2018). Most importantly, the target state is likely to strongly resist international pressure if it perceives that compliance would empower opposition forces and organizations. Therefore, the target state is expected to reject international human rights recommendations that ‘endanger the political

livelihoods of incumbents by fostering political competition and dissent' (Terman and Byun 2022, 388).

The above discussion leads me to formulate the following human rights hypothesis:

Human Rights Hypothesis: The target state is likely to address human rights issues if it perceives them to be non-threatening to the regime.

4 | Why the Responses of Nationalist Leaders to International Pressure Vary

Because the main purpose of this section is to propose that nationalist leaders' responses to international criticisms vary by human rights issues and because many different rights violations occur across countries, I offer theoretical expectations as concisely as possible. I leave a more detailed causal mechanism for individual human rights issues for future research, as addressing it comprehensively within a single article is practically impossible. This parsimonious approach aligns with the convention of prominent studies that examine numerous human rights issues (e.g., Fariss 2014; Terman and Byun 2022).

Political leaders possess various tools for legitimizing their rule in the eyes of the society that they govern. However, some consider nationalism to be one of the most effective because it allows them to exploit the very foundation of modern nation-states—a shared ethnic identity and culture (Connor 1994; Hechter 2000; Ko 2023; Smith 1999). Ethnic identity, in particular, provides a shortcut to power because people tend to support leaders from the same ethnic group. For example, leaders in post-independence states bolster their popularity by invoking the uniqueness of their ethnic identity (Linz 2000). Even in democratizing countries, leaders were not an exception in leveraging their ethnicity to gain support during national elections (Mansfield and Snyder 2005). When a power transfer occurred, new leadership often attempted to strengthen national consciousness and unity by promoting ethnic identity (Krastev 2011).

Nationalist political leaders claim that they represent their ethnic group, one with a distinct and superior political destiny compared to others. An archetypal figure in this regard is Hendrik Verwoerd, the former prime minister of South Africa, who earned the nickname 'Architect of Apartheid' for his role in establishing the country's system of institutionalized racial segregation and white supremacy over black South Africans. Indigenous peoples such as !Xun, Khwe, ǀKhomani and the Khoekhoe also lost all human rights and were forcibly categorized as other population groups (Hitchcock and Vinding 2004). It is not surprising that the politics of nationalist leaders is inherently divisive in nature because it separates 'we' from ethnic 'others'. Nationalist leaders prioritize the rights of 'we' over both internal and external ethnic 'others' whom they perceive as inferior and/or hostile (Schmitt 1976; Tajfel 1982).

For instance, some American politicians have treated indigenous and African Americans as ethnic 'others' to establish the right to exercise control over the nation. In Russia, upon coming to power

in 1999, Vladimir Putin mobilized his troops against Chechen Muslims, proclaiming, 'Moscow is returning civilization to Chechnya' (quoted in Tanrisever 2001, 123). Min Aung Hlaing, the de facto ruler of Myanmar, repeatedly stated that 'the Bengali problem was a long-standing one which has become an unfinished job, using the name "Bengali" derisively for the Rohingya' (quoted in Mahtani and McLaughlin 2021). In essence, nationalist leaders do not seek legitimacy through the consent of the entire population, but, instead, by claiming to represent the will of the dominant ethnic group—the beneficiary of ethnic favouritism.

Although numerous human rights concerns exist, I confine my discussion to seven areas of human rights violations that I run across the Universal Periodic Review (UPR). This follows the typology of Terman and Byun (2022) and Terman and Voeten (2018), who categorize human rights issues into seven theme groups for parsimonious analysis: (a) minority discrimination, (b) migration, (c) physical integrity rights, (d) political and civil rights, (e) socio-economic rights, (f) vulnerable people and (g) government services.

4.1 | Minority Discrimination

As discussed above, nationalist leaders are likely to reject international pressure related to the rights of disfavoured ethnic groups because they bolster legitimacy using nationalist rhetoric and policies. The other option, addressing these concerns properly, creates a serious threat to regime legitimacy. Nationalist leaders often discriminate against disfavoured ethnic groups in the areas of employment, social services, public health, education and housing (Boylan 2016). They seek to assimilate or exclude minority groups (sometimes even the majority group) while favouring the dominant ethnic group, which serves as their essential support base for their political survival.

Historical examples of nationalist leaders who engaged in such discrimination include Slobodan Milošević, who targeted Kosovar Albanians in the Federal Republic of Yugoslavia, and Adolf Hitler, who persecuted Jewish and Romani people in Germany (Harff 2003). A more recent case is Omar al-Bashir of Sudan, who directed a campaign of mass killing, rape and pillage against non-Arab civilians in Darfur (Hagan and Raymond-Richmond 2008). To maintain power, nationalist leaders engage in ethnic expulsions, cleansing and killings. They claim that such actions are necessary to protect and preserve the nation from inferior and hostile ethnic others. Given that nationalist leaders legitimize their power by discriminating against ethnic minorities, they are unlikely to provide relief to ethnicity-related human rights issues.

Interaction Hypothesis 1: Nationalist leaders are more likely to dismiss international criticisms of minority discrimination.

4.2 | Vulnerable People

Nationalist leaders are also prone to excluding individuals in vulnerable situations from accessing essential health services, goods and facilities. Vulnerable people encompass those from

the LGBT community, gender-diverse individuals and people with HIV/AIDS, among others. Nationalist leaders believe that these vulnerable people have no rights to equal access and equity because they view them as a social disease and therefore cannot be members of their superior ethnic group (Mofokeng et al. 2020; Schlein 2018).

Interaction Hypothesis 2: Nationalist leaders are more likely to reject international criticisms of violating the rights of vulnerable people.

4.3 | Migration

Nationalist leaders are inclined to restrict liberal immigration policy, aligning with their policy commitments to protect their own ethnic group and national borders. Because illegal immigration emerged as the centre of public debate worldwide, nationalist leaders have been seeking to find their own optimal solution (Ko and Choi 2022). For instance, former President Donald Trump ordered the rapid construction of walls along the border with Mexico to deter the inflow of illegal immigrants, a typical approach in nationalist politics (Davis et al. 2017). The issue of immigration also played a significant role in the Brexit campaign, which led to the country's vote to exit the European Union. Nationalist leaders' anti-immigration commitments often translate into hostility towards immigrants and a willingness to circumvent and resist international human rights standards.

Interaction Hypothesis 3: Nationalist leaders are more likely to dismiss international criticisms of discriminatory migration policy.

4.4 | Physical Integrity Rights

Though not all,⁶ many nationalist leaders are authoritarian in the sense that they legitimize power by infringing on the physical integrity rights of a particular portion of the population—disfavoured ethnic groups. They have incentives to employ tactics such as extermination, exile, extortion, extrajudicial killing, torture and even genocide against ethnic others (Hagan and Raymond-Richmond 2008; Krain 2012). Nationalist leaders seek to deflect international criticisms of human rights violations against ethnic others because their rule is not based on the consent of these disfavoured ethnic groups. Their authoritarian practices undermine democracy, which 'provides an environment that respects human rights and fundamental freedoms, and in which the freely expressed will of the whole population is exercised'.⁷ Furthermore, they justify their violations of human rights in the name of protecting national sovereignty from foreign encroachments. An illustrative example is the following statement by Zhang Jun, China's permanent representative to the UN, at the General Debate of the Third Committee of the 76th Session of the UN General Assembly on October 7, 2021.

At the Third Committee, the US and a few other countries are provoking confrontation, pointing

fingers at other developing countries' human rights situations, and brazenly launching smear campaigns. At the same time, they choose to stay silent on their own issues and turn a blind eye to the terrible human rights records of their allies ... In total disregard of facts, the US and a few other countries are fabricating lies ... making groundless accusations against China, and using human rights to interfere in *China's internal affairs*.

(Quoted in China Daily Global 2021, emphasis added)

Nationalist leaders invoke national sovereignty to protect themselves and their supporting ethnic group, rather than the entire nation. For example, Islam Karimov was a nationalist and authoritarian president in Uzbekistan. 'To maintain his grip, he fostered Uzbek nationalism, harassed the political opposition, and targeted independent religious centers of power, justifying mass arrests of Muslims as necessary in the struggle against Islamist radicalism' (Roth 2016). Craig Murray, the British Ambassador to Uzbekistan, exposed the widespread human rights abuses committed by the Karimov regime. He highlighted numerous human rights violations, including torture, kidnapping, murder, rape by the police, religious persecution and censorship. One of his most persuasive stories was that Karimov's security forces executed alleged terrorists, Muzafar Avazov and Khuzniddin Alimov, by boiling them alive in 2002 under the pretext of national security (Rashid 2009). There is little doubt that Islam Karimov engaged in a series of physical integrity violations during his presidency from 1991 to 2016 to hold onto power. Because nationalist leaders use repressive measures as their primary political tools to subdue ethnic others, they are unlikely to address international concerns about violations of physical integrity rights.

Interaction Hypothesis 4: Nationalist leaders are more likely to deflect international criticisms of violating physical integrity rights.

4.5 | Political and Civil Rights

When nationalist leaders adopt authoritarian methods to remain in power, they are also less likely to protect the political and civil rights of populations. The encroachment on political and civil rights tends to persist as long as political leaders benefit from playing the nationalist card. For instance, President Saparmurat Niyazov, while exploiting Turkmen nationalism, severely restricted fundamental rights such as freedom of speech, freedom of the press, freedom of religion and due process rights, including public trials and access to public defence attorneys for ethnic minorities (Zabortseva 2018). It is, therefore, not surprising that Human Rights Watch (2014) remarked, 'Turkmenistan remains one of the world's most repressive countries ... media and religious freedoms are subject to draconian restrictions, and human rights defenders and other activists face the constant threat of government reprisal'. As seen in the case of President Saparmurat Niyazov, nationalist leaders are less likely to show interest in advancing political and civil rights.

Interaction Hypothesis 5: Nationalist leaders are more likely to dismiss international criticisms of violating the political and civil rights of populations.

4.6 | Socio-Economic Rights

Although nationalist leaders deem many human rights concerns expressed by the international community unacceptable and suspicious, they are willing to make some inconsequential changes if such alterations serve the regime's stability. Ultimately, nationalist leaders are politicians, and to remain in office, they must engage in a political game of 'give and take' with international human rights organizations. They try to avoid being singled out as the worst human rights abusers, as international isolation may lead to domestic political instability. For instance, even Vladimir Putin formally seeks to rejoin the UN Human Rights Council after Russia was suspended from the body due to a large number of human rights violations in the Russo-Ukrainian War (Roth et al. 2023). Nationalist leaders must find some way to please the international community to prevent losing membership and continue to remain in power while skilfully deflecting international pressure on human rights issues that fundamentally challenge their regime (Bush 2015; Hafner-Burton and Tsutsui 2005; Risse-Kappen et al. 1999).

Nationalist leaders have strong incentives to address international human rights concerns if the improvement can bring economic prosperity to their nation. This is particularly true because their ethnic supporters are disproportionately likely to benefit from it. As a result, they are often highly motivated to improve economic rights, recognizing that it could 'naturally [reduce] the potential to stigmatize [them]' (Roth 2004, 68). They are eager to emulate the success of developmental dictatorships in South Korea, China, Singapore and Vietnam (Lee 2003; Paik 2013). Enhancing economic rights can generate economic fortune and relief from international scrutiny, further entrenching their own power. When they perceive an opportunity for substantial gains from economic growth, nationalist leaders are more inclined to accept and implement international recommendations.

Interaction Hypothesis 6: Nationalist leaders are more likely to accept international criticisms of violating socio-economic rights.

4.7 | Government Services

To preserve their reputation or standing within the international community, nationalist leaders recognize the need to adhere to international norms to some extent. It is not uncommon for nationalist leaders to pretend to work on improving, as international recognition sends a powerful signal of legitimacy to their own ethnic group (Terman and Voeten 2018), which, in turn, can elevate national pride among the people of the dominant ethnic group and buttress leaders' power. Nationalist leaders may implement human rights education and training, sending a positive message to the international human rights community

without severely compromising the sustainability of the regime per se. Nationalist leaders may engage with human rights concerns to maintain their place in the international community, even though their own practical commitment to human rights protection remains shallow (Hafner-Burton and Tsutsui 2005).

Interaction Hypothesis 7: Nationalist leaders are more likely to embrace international criticisms of violating government services.

5 | Building a Statistical Model of Human Rights Choices

To empirically test the above hypotheses, I collect cross-national, time-series data for 193 countries over the period from 2008 to 2016. As I explore why each state accepts or does not accept other states' recommendations to improve human rights records, the unit of analysis is individual choices. I build a multiplicative regression model as follows:

$$\begin{aligned} Accept_{jt} = & \beta_0 + \beta_1 * Nationalist Leader_{jt} \\ & + \beta_2 * Human Rights Issue_{jt} \\ & + \beta_3 * Nationalist Leader * Human Rights Issue_{jt} \\ & + \beta_4 * Severity_{it} + \beta_5 * Major Power: Reviewer_{it} \\ & + \beta_6 * Major Power: Target_{jt} \\ & + \beta_7 * Geopolitical Affinity_{ijt-1} \\ & + \beta_8 * Geographic Distance_{ijt} + \beta_9 * Same Region_{ijt} \\ & + \beta_{10} * Democracy: Reviewer_{it-1} \\ & + \beta_{11} * Democracy: Target_{jt-1} + \varepsilon_{ijt} \end{aligned}$$

This model possesses the following characteristics: subscript i and $j = 1, \dots, N$ indicates reviewing and reviewed states and subscript $t = 1, \dots, T$ indexes the time period. $Accept_{jt}$ is the dependent variable; β_0 is the intercept term; β_1 through β_{11} are coefficients for independent variables; and ε_{ijt} is the error term.

I operationalize the dependent variable, *Accept*, as '1' if the reviewed state supported the recommendation of improving human rights situations and '0' otherwise.⁸ I gather data on the decisions of the reviewed state from the UPR organized by the UN Human Rights Council. The UPR draws attention to human rights issues based on three sources: (a) a national report provided by the state under review; (b) various reports from independent human rights experts and groups, including the Special Procedures, human rights treaty bodies and other UN entities; and (c) information from other stakeholders such as national human rights institutions and non-governmental organizations.

The UPR is a comprehensive process in which each state undergoes a 3.5-h review session on the same day. This session involves an interactive dialogue between the reviewing states and the reviewed state. The reviewed state, after hearing all human rights recommendations, is allocated a maximum of 70-min overall speaking time during the 3.5-h meeting. At the end of the session, the reviewed state must decide on each human rights recommendation it received, choosing between 'accept' and 'not

accept'. The reviewed state has about 5 years to implement the accepted recommendations before undergoing another review in the next cycle.⁹

The UPR ensures that all countries are responsible for making progress in implementing the recommendations and addressing human rights issues. During the second review in 5 years, the reviewed state must report on the actions taken to implement recommendations from the first review and any developments in human rights. If a reviewed state is not cooperating with the UPR, the Human Rights Council may take measures to address the situation. However, the reviewing states can only publicly name and shame the reviewed state's violations and do not have the authority to enforce change.¹⁰ Even if the reviewed state accepts recommendations for improvement, it does not guarantee improvements in human rights conditions.

I create a sample dataset based on the first two review cycles, which span from 2008 to 2011 and from 2012 to 2016.¹¹ In these cycles, all 193 UN member states underwent the UPR process twice, once per cycle. After considering the data availability of all variables, the dataset comprises a total of 47,093 state responses, accepting or not accepting the recommendations. It is important to note that the sample excludes certain entities, such as Palestine and the Vatican, due to their absence from the Correlates of War (COW) country codes.¹² Overall, states accepted 34,687 recommendations, which accounts for 74% of the total recommendations, whereas they did not accept 12,406 recommendations, making up the remaining 26%.

As the dependent variable is dichotomous, my estimation method is logistic regression.¹³ To minimize the effect of potential model misspecification, I report standard errors that are robust to some kinds of misspecification. I include fixed effects for both reviewing and reviewed states in the logit model to account for the unique (or omitted) socio-political characteristics of the states that may affect the reviewed state's decisions. Additionally, I include fixed effects of years to control for temporal effects. Note that although the sample period ranges from 2008 to 2016, each state is reviewed only twice during the nine-year period. Each state is reviewed during only one of the three 2-week sessions per year, or 14 sessions over the course of the entire cycle. For example, South Africa was reviewed in April 2008 during the first cycle (2008–2011) and in May 2012 during the second cycle (2012–2016).

I create three interaction-related variables: *Nationalist Leader*, *Human Rights Issue* and *Nationalist Leader*Human Rights Issue*. These variables are constructed from the viewpoint of the reviewed state as the focus is on the choices made by nationalist leaders in the reviewed state. I set all interaction-related variables at time t , reflecting that decisions on human rights recommendations are made on the spot during the review process.

Following previous studies such as Choi (2025), Ko and Choi (2022), Ko and Shin (2021), Kwon and Kim (2025) and Rains and Hill (2024), I operationalize *Nationalist Leader* as the degree of ethnic nationalism exhibited by the chief executive in the reviewed state. This is in line with Green's (Green 2020, 758) insight: 'the relationship between membership in the ethnic core and national identification ... is determined by whether or not the ethnic core controls the state, as proxied by the ethnic

identity of the president or head of government'. The *Nationalist Leader* variable captures how much top leaders promote ethnic nationalism as their legitimation strategy, but not how the public judges the legitimacy of their rulers.

I gather data from the 2019 Varieties of Democracy (V-Dem) Project.¹⁴ The V-Dem Project codebook makes it clear that they do not ask about people's opinions: 'Governments make legitimacy claims—provide justifications for the form of rule under which they govern. In the following section, we are interested in the nature of the legitimacy claims made by the sitting government. Please note that the government's claims to legitimacy—their legitimation strategies—are the object of inquiry here. We are not asking you to assess how ordinary people judge the legitimacy of their rulers' (206).

The V-Dem Project constructs this variable based on the following survey question: 'To what extent does the current government promote [ethnic nationalism] in order to justify the regime in place?'¹⁵ Accordingly, the *Nationalist Leader* variable captures the essence of my theoretical discussion regarding political leaders promoting ethnic nationalism as their legitimation strategy. The V-Dem Project employs a minimum of five experts per country to reduce survey bias and subsequently transforms the expert responses into a continuous measure using the point estimates from a Bayesian latent factor analysis model. The *Nationalist Leader* variable ranges from '0' (*least nationalistic*) to '1' (*most nationalistic*), with a mean value of 0.530.

As indicated in the phrasing of the survey question, the measure is not significantly related to whether countries become more nationalistic in the lead-up to a conflict. For instance, Bashar al-Assad's nationalism score remained constant, neither increased nor decreased, before or after the Sunni protest movements against his Shia-controlled Syrian regime in 2011. Bashar al-Assad's score has been 0.571 ever since he came to power in 2000. Moreover, this measure does not influence how the public perceives the legitimacy of rulers whose governance is anchored in ethnic nationalism.

To operationalize *Human Rights Issue*, I collect human rights issues discussed during the first two review cycles (2008–2011 and 2012–2016).¹⁶ This sample size is the largest compared to previous studies, such as Terman and Byun (2022) and Terman and Voeten (2018). As noted, I focus on seven theme groups of human rights: (a) minority discrimination, (b) migration, (c) physical integrity rights, (d) political and civil rights, (e) socio-economic rights, (f) vulnerable people and (g) government services.

The minority discrimination group combines four human rights issues: minority rights, indigenous peoples, racial discrimination and freedom of religion and belief. The migration group includes five violations of human rights, including migrants, asylum seekers and refugees, freedom of movement, labour rights and internally displaced persons. The physical integrity rights group comprises eight issues: justice, death penalty, extrajudicial executions, detention, torture and other CID treatment, enforced disappearances, human rights violations by state agents and impunity for state agents. The political and civil rights group consists of seven issues, including

civil political rights, civil society, elections, freedom of association and peaceful assembly, freedom of opinion and expression, freedom of the press and human rights defenders. The socio-economic rights group encompasses 10 issues: economic, social and cultural rights, right to development, poverty, right to education, right to food, right to health, right to housing, right to land, right to water and environment. The vulnerable people group includes six issues: women's rights, trafficking, sexual orientation and gender identity, rights of the child, disability rights and HIV/AIDS. The government services group put together four issues: corruption, public security, human rights education and training and counterterrorism.

Each *Human Rights Issue* group is dichotomous, coded as '1' if a human rights violation belongs to one of the seven theme groups and '0' otherwise.

I create an interaction term between *Nationalist Leader* and each *Human Rights Issue* group by multiplication.

I include eight control variables that may influence the response of the reviewed state: *Severity*, *Major Power: Reviewer*, *Major Power: Target*, *Geopolitical Affinity*, *Geographic Distance*, *Same Region*, *Democracy: Reviewer* and *Democracy: Target*.

The reviewed state is unlikely to accept recommendations that are perceived to be too severe (Conrad and Moore 2010). I control for the degree of *Severity* expressed in the reviewing state's recommendations. Following Terman and Voeten's (2018) approach, which transforms the recommendations into a 3-point ordinal measure, I create *Severity* on a scale of 1–3, denoting '3' as the most severe or demanding recommendations, requesting changes in the behaviour of the reviewed state.

If the reviewing state is a major power, the reviewed state may be less likely to accept recommendations because it perceives the international pressure as a David and Goliath fight. In such cases, the reviewed state is likely to invoke national sovereignty to fend off international pressure, especially in situations of power imbalance between the reviewing and reviewed state (German 2009). To account for this dynamic, I create a dichotomous measure of *Major Power: Reviewer*, coded as '1' if the reviewing state is one of five major powers (the United States, the United Kingdom, France, Russia and China) and '0' otherwise.¹⁷ Similarly, if the reviewed state is a major power, it is less likely to respond favourably, as its military might makes non-compliance less risky. I control for *Major Power: Target*, coded as '1' if the reviewed state is a major power and '0' otherwise.

Terman and Byun (2022) argue that the reviewing state tends to criticize its enemies on sensitive issues that undermine the political legitimacy of the reviewed state while discussing safer topics with friends. They provide evidence that the reviewed state responds more favourably to recommendations coming from geo-strategically close friends than from enemies. Relying on an updated version of Bailey et al. (2017), I account for this strategic behaviour of human rights participants by creating *Geopolitical Affinity* between the reviewing and reviewed states. It is operationalized as the absolute distance between country ideal points. These ideal points are estimated using votes in the

UN General Assembly, and then this distance is multiplied by minus one. *Geopolitical Affinity* is a continuous measure ranging from -4.710 to -0.001 . A higher value indicates greater ideological convergence between the reviewing and reviewed states on global issues.

As the old saying goes, 'familiarity breeds contempt'. Indeed, geographic proximity between reviewing and reviewed states is likely to affect the reviewed state's choices. When reviewing and reviewed states are geographically close, the reviewed state is less likely to accept the reviewing state's recommendations (Terman and Voeten 2018). I incorporate two ways of controlling for geographic proximity: *Geographic Distance*, which measures the geographic distance between the two capitals of the reviewing and reviewed states, and *Same Region*, which identifies whether the reviewing and reviewed states belong to the same region (Africa, Asia, Europe, Middle East, Oceania and Western Hemisphere).

Because democratic states tend to promote human rights protection (Poe and Tate 1994), they are likely to accept recommendations from fellow democratic states (Yazici 2019). When human rights violators perceive the reviewing state as a role model for democracy, they may be inclined to accommodate human rights recommendations. *Democracy: Reviewer* is continuous, ranging from -10 (*least democratic*) to 10 (*most democratic*). Several studies suggest that human rights violators are more likely to address their human rights situations in response to international pressure as they become more democratic (Davenport 1999; Landman 2018).¹⁸ I measure *Democracy: Target* on a scale of -10 (*least democratic*) to 10 (*most democratic*). I gather data from the Polity database (see Marshall et al. 2016).¹⁹

With a focus on the minority discrimination variable,²⁰ Table 1 displays correlations and descriptive statistics of variables. Note that the correlation between *Nationalist Leader* and *Democracy: Target* is very low. This suggests a limited empirical overlap between *Nationalist Leader* and *Democracy: Target*. In other words, nationalism and authoritarianism are not necessarily causally related to each other. The lack of a strong correlation is not surprising, given that nationalist leaders have appeared in both democratic and authoritarian countries (Bieber 2019; Fuller 2016; Walt 2011).

6 | Empirical Results

As hypothesized, nationalist leaders' responses to international pressure are selective because some human rights issues may potentially undermine nationalist leaders' *raison d'état* or ability to suppress political opponents (i.e., more likely to dismiss international pressure with respect to minority discrimination, migration, physical integrity rights, political and civil rights and vulnerable people), whereas others may help them bolster the regime (i.e., more likely to accept socio-economic rights and government services).

Table 2 presents multiplicative interaction logit estimates.²¹ Because the p value for Wald χ^2 is less than 0.001, all seven models are statistically significant. This indicates a significant combined effect of the independent variables on the dependent

TABLE 1 | Correlations and descriptive statistics.

	Accept	Nationalist Leader	Minority Discrimination	Nationalist * Minority	Severity	Major Power: Reviewer	Major Power: Target	Geopolitical Affinity	Geographic Distance	Same Region	Democracy: Reviewer	Democracy: Target
Accept	1											
Nationalist Leader	-0.042	1										
Minority Discrimination	0.027	-0.041	1									
Nationalist*Minority	0.013	0.141	0.850	1								
Severity	-0.371	0.024	-0.044	-0.030	1							
Major Power: Reviewer	-0.022	0.006	0.006	0.011	0.043	1						
Major Power: Target	-0.061	-0.016	0.048	0.044	0.020	-0.010	1					
Geopolitical Affinity	0.227	-0.072	-0.050	-0.053	-0.204	-0.250	-0.145	1				
Geographic Distance	-0.044	0.014	-0.025	-0.014	0.041	-0.013	0.003	-0.093	1			
Same Region	0.089	-0.029	0.014	0.019	-0.076	-0.024	0.021	0.346	-0.558	1		
Democracy: Reviewer	-0.174	0.004	-0.042	-0.020	0.314	0.073	-0.036	-0.130	0.117	-0.046	1	
Democracy: Target	0.107	-0.054	0.163	0.117	0.019	0.006	0.042	0.084	0.024	0.110	0.014	1
Mean	0.737	0.530	0.106	0.053	2.260	0.083	0.037	-1.146	4276.163	0.257	3.435	6.099
Standard deviation	0.441	0.285	0.308	0.180	0.730	0.276	0.189	0.870	2687.584	0.437	6.351	5.603
Minimum	0	0	0	0	1	0	0	-4.710	5	0	-10	-10
Maximum	1	1	1	1	3	1	1	-0.000	12,347	1	10	10

TABLE 2 | Nationalist leaders and human rights.

Variable	Dependent variable: Accept						
	Model 1	Model 2	Model 3	Model 4	Model 5	Model 6	Model 7
<i>Nationalist Leader</i>	−1.271*** (0.303)	−1.299*** (0.303)	−1.220*** (0.307)	−1.293*** (0.304)	−1.304*** (0.302)	−1.308*** (0.304)	−1.280*** (0.302)
<i>Minority Discrimination</i>	0.039 (0.093)						
<i>Nationalist * Minority</i>	−0.146 (0.158)						
<i>Migration</i>		−0.802*** (0.087)					
<i>Nationalist * Migration</i>		0.280* (0.153)					
<i>Physical Integrity Rights</i>			−0.234*** (0.061)				
<i>Nationalist * Physical</i>			−0.348*** (0.097)				
<i>Political and Civil Rights</i>				−0.359*** (0.088)			
<i>Nationalist * Political</i>				0.195 (0.139)			
<i>Socio-economic Rights</i>					0.433*** (0.097)		
<i>Nationalist * Socio-economic</i>					−0.038 (0.158)		
<i>Vulnerable People</i>						0.726*** (0.065)	
<i>Nationalist * Vulnerable</i>						−0.043 (0.105)	
<i>Government Services</i>							0.695*** (0.166)
<i>Nationalist * Government</i>							0.897*** (0.282)
<i>Severity: 2</i>	−1.136*** (0.068)	−1.105*** (0.069)	−1.140*** (0.068)	−1.121*** (0.068)	−1.112*** (0.068)	−1.149*** (0.069)	−1.134*** (0.069)
<i>Severity: 3</i>	−2.673*** (0.068)	−2.654*** (0.068)	−2.629*** (0.068)	−2.667*** (0.068)	−2.632*** (0.068)	−2.662*** (0.068)	−2.671*** (0.068)
<i>Major Power: Reviewer</i>	−1.418 (1.207)	−1.642 (1.224)	−1.450 (1.203)	−1.375 (1.207)	−1.206 (1.210)	−1.673 (1.218)	−1.480 (1.209)

(Continues)

TABLE 2 | (Continued)

Variable	Dependent variable: Accept						
	Model 1	Model 2	Model 3	Model 4	Model 5	Model 6	Model 7
<i>Major Power: Target</i>	−1.671*** (0.292)	−1.678*** (0.292)	−1.535*** (0.291)	−1.691*** (0.292)	−1.676*** (0.293)	−1.589*** (0.295)	−1.676*** (0.293)
<i>Geopolitical Affinity</i>	0.514*** (0.023)	0.497*** (0.023)	0.510*** (0.023)	0.506*** (0.023)	0.503*** (0.023)	0.486*** (0.023)	0.512*** (0.023)
<i>Geographic Distance</i>	0.000* (0.000)	0.000* (0.000)	0.000* (0.000)	0.000** (0.000)	0.000* (0.000)	0.000 (0.000)	0.000* (0.000)
<i>Same Region</i>	−0.004 (0.051)	−0.025 (0.051)	−0.007 (0.051)	0.001 (0.051)	−0.002 (0.051)	−0.007 (0.051)	−0.019 (0.051)
<i>Democracy: Reviewer</i>	0.019 (0.019)	0.018 (0.019)	0.022 (0.019)	0.018 (0.019)	0.018 (0.019)	0.022 (0.019)	0.018 (0.019)
<i>Democracy: Target</i>	0.012 (0.013)	0.012 (0.013)	0.011 (0.013)	0.012 (0.013)	0.012 (0.013)	0.008 (0.013)	0.011 (0.013)
Wald χ^2	9606.02	9637.56	9734.15	9620.80	9643.23	9811.46	9587.70
Prob > χ^2	0.00	0.00	0.00	0.00	0.00	0.00	0.00
Pseudo R^2	0.30	0.31	0.31	0.31	0.31	0.32	0.31
Obs.	46,711	46,711	46,711	46,711	46,711	46,711	46,711

Note: Constant is excluded to save space. Robust standard errors are in parentheses.

* $p < 0.10$.

** $p < 0.05$.

*** $p < 0.01$.

variable. Furthermore, given that the pseudo R^2 ranges from 0.30 to 0.32, the models appear to be well constructed for identifying the determinants of the reviewed state's responses. The table supports my main hypotheses regarding nationalist leaders and human rights issues. Among the control variables, *Severity*, *Major Power: Target*, and *Geopolitical Affinity* consistently produce a supporting effect. Notably, *Nationalist Leader* exerts a significant and independent impact on human rights choices, whereas *Democracy: Target* fails to achieve significance.

Given that both constitutive terms of the interaction variable contain 0, I can assess the effect of *Nationalist Leader* by setting *Human Rights Issue* at 0. It turns out that *Nationalist Leader* is significantly different from zero across the board, and the coefficient sign is in the expected direction. This finding supports the nationalist leader hypothesis: The reviewed state is less likely to accept human rights standards and norms if its top leadership promotes nationalism as a political legitimization strategy. When *Nationalist Leader* is at 0, the effect of each human rights group varies, supporting the human rights hypothesis. For example, of the seven human rights groups, *Minority Discrimination* is insignificant. *Migration*, *Physical Integrity Rights* and *Political and Civil Rights* are negatively associated with the reviewed state's willingness to accept recommendations. *Socio-economic Rights*, *Vulnerable People* and *Government Services* are closely associated with the reviewed state's positive responses.

When both constitutive terms are not set at 0, the interaction effect appears to vary, as predicted in the interaction hypothesis. However, it is essential to note that this interpretation may be misleading due to the non-linear nature of the interaction terms.

To evaluate the estimated results of interaction terms, I plot the average marginal effects of the seven theme groups of human rights in Figure 1. These effects are based on the log odds of the seven logit models shown in Table 2. Average marginal effects give us an effect on probability, a continuous value between 0 and 1. They represent the average change in probability—magnitude—when each independent variable increases by one unit. Because logit is non-linear in nature, the effect differs from case to case.

The analysis of the marginal effects indicates that five theme groups—*Minority Discrimination*, *Migration*, *Political and Civil Rights*, *Socio-economic Rights* and *Vulnerable People*—are neither positively nor negatively associated with the reviewed state's choices. These null findings should not be discouraged. As Laitin (2013, 5) argues, 'we need to incentivize the publication of replications and null results'. Recently, Alrababa'h et al. (2023) re-emphasize the importance of null findings in the pursuit of scientific truth.

Among these five theme groups, the insignificance of the first theme group, *Minority Discrimination*, is particularly intriguing, because the literature typically sees nationalist leaders as

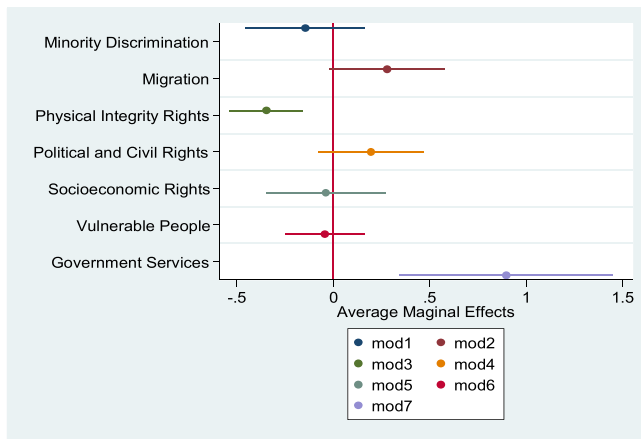


FIGURE 1 | Average marginal effects: seven issue themes reported in Table 1. [Colour figure can be viewed at wileyonlinelibrary.com]

being especially responsible for mistreating ethnic others for the sake of political survival. In fact, the insignificance of *Minority Discrimination* deviates from my hypothesis that nationalist leaders are more likely to ignore international criticisms of minority discrimination.

Nevertheless, when I break down the first theme group into its four subcomponents, I find at least one subcomponent significant with a negative sign, supporting the first interaction hypothesis. Figure 2²² shows the average marginal effects of these four discrimination-related issues. The graphic analysis suggests that nationalist leaders are less likely to support international efforts to promote the minority rights of indigenous peoples. It appears that nationalist leaders, who gain their legitimacy by putting their own ethnic group first, often marginalize and discriminate against indigenous peoples by limiting their rights to education, health care and housing, akin to practices such as apartheid. This finding aligns with a policy report by Amnesty International: ‘Indigenous peoples often rank highest for prison inmates, illiteracy, and unemployment. Globally, they suffer higher rates of poverty, landlessness, malnutrition, and internal displacement’.²³ However, nationalist leaders seem to have no strong opinions about the other three human rights issues, as they do not show statistical significance. This is probably because these three issues, unlike indigenous people, do not pose a serious threat to the political legitimacy of nationalist leaders. As a result, nationalist leaders have little incentive to accept or reject international pressure on these issues.

Physical Integrity Rights and *Government Services* appear to be two more significant determinants of the reviewed state's responses to international criticisms. Whereas *Physical Integrity Rights* have a dampening effect on the likelihood of the reviewed state's acceptance, *Government Services* show the opposite effect. To delve into the root causes of these two human rights groups, I investigate their subcomponents.

Figure 3²⁴ displays the average marginal effects of eight human rights issues within the *Physical Integrity Rights* group. It appears that nationalist leaders in the reviewed state are less likely to accept recommendations related to their repressive practices. *Extrajudicial Executions*, *Detention*, *Torture and Other CID Treatment* and *Enforced Disappearances* are all repressive tools

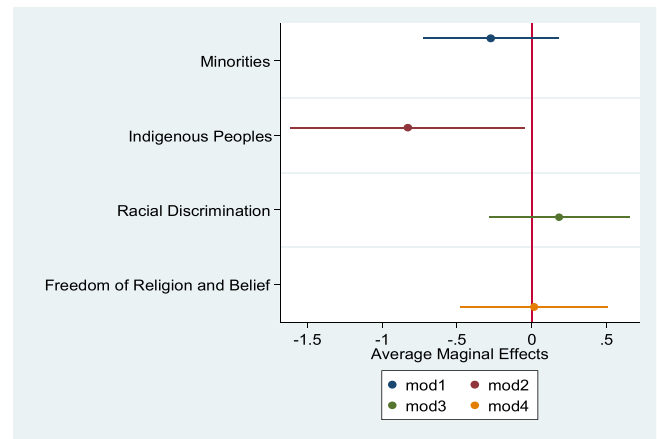


FIGURE 2 | Average marginal effects: four minority discrimination reported in Appendix S1. [Colour figure can be viewed at wileyonlinelibrary.com]

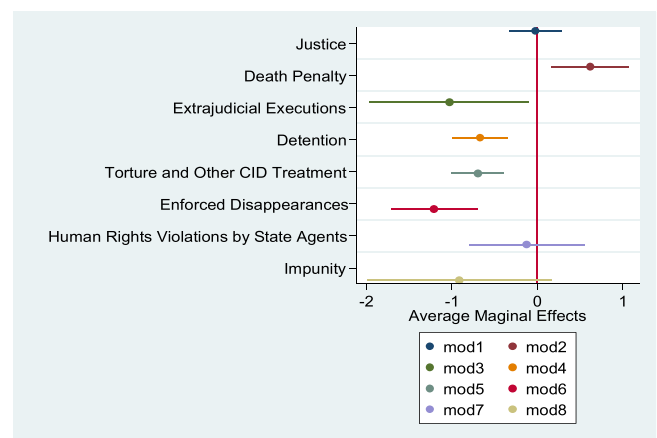


FIGURE 3 | Average marginal effects: eight physical integrity rights reported in Appendix S2. [Colour figure can be viewed at wileyonlinelibrary.com]

that nationalist leaders frequently employ to silence ethnic others. Nationalist leaders appear to have no trouble disregarding their opponents' human rights to hold onto power. Meanwhile, nationalist leaders are more likely to improve human rights conditions related to *Death Penalty*. This may be because there is a global trend away from capital punishment and because the abolition of the death penalty does not diminish their ability to repress dissenting voices. Nationalist leaders might be leveraging this trend to enhance their international image. Other human rights issues such as *Justice*, *Human Rights Violations by State Agents* and *Impunity* have little impact on the reviewed state's responses. This graphic analysis shows that nationalist leaders' responses to international human rights criticisms vary depending on the types of physical integrity rights violations. Accordingly, this more nuanced analysis gives credence to the interaction hypothesis.

I draw Figure 4²⁵ to determine the main driving forces behind *Government Services*, as this variable is positively associated with nationalist leaders' decisions, as illustrated in Figure 1. It appears that the reviewed state is likely to support the reviewing state's recommendations regarding *Human Rights Education*

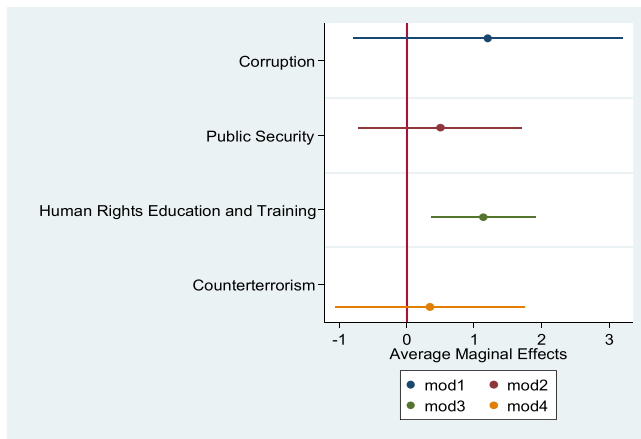


FIGURE 4 | Average marginal effects: four government services reported in Appendix S3. [Colour figure can be viewed at [wileyonlinelibrary.com](https://onlinelibrary.wiley.com)]

and Training. This is not surprising, as this human rights improvement is expected to enhance the reviewed state's positive image among UN members without causing significant political setbacks domestically. The reviewed states may believe that they can deflect international pressure by making superficial commitments rather than substantial changes to human rights problems.

It is interesting to evaluate whether these quantitative results align with the insights gained from qualitative observations. I use two historical cases (Sri Lanka and Finland). To save space, I relegate the discussion to Appendix S4.

7 | Conclusion

This study delves into the fundamental question of how leaders respond to international human rights criticisms; it greatly helps scholars and policymakers figure out how to protect and promote human rights worldwide in the age of rising nationalism. State leaders frequently invoke nationalism to justify their human rights records and are believed to refuse to improve human rights conditions upon international human rights recommendations. For instance, several studies note that Donald Trump brought back torture and indefinite detention under the pretext of deterring growing terrorist threats (e.g., Nebehay 2017; Sikkink 2016). Departing from previous studies that examine the causes of states' domestic human rights practices (e.g., Choi and James 2017; Hafner-Burton and Tsutsui 2005; Krain 2012),²⁶ I raise the question of why some human rights violators are willing to accommodate some international criticisms while rejecting others. I theorize that nationalist leaders get their favoured ethnic group behind themselves to fend off some, if not all, serious human rights criticisms in the name of national sovereignty.

The quantitative and qualitative analyses presented here offer supporting evidence for the following hypotheses: (a) Nationalist leaders are, in general, likely to deflect the standards of the international human rights community, (b) nationalist leaders are unlikely to accommodate international pressure to improve minority rights for indigenous peoples, (c) nationalist leaders are

likely to dismiss recommendations for alleviating the physical integrity rights of ethnic minorities by claiming them as an internal matter and a sovereignty issue, and (d) nationalist leaders favourably respond to soft human rights issues such as the instalment of human rights education and training.

These findings are not good news for the international community, as nationalist leaders appear to be a significant obstacle to human rights promotion. International efforts to address human rights problems are not as fruitful as they should be because nationalist leaders, who are supposed to be cooperative and collaborative, are not really motivated to end discrimination, exclusion and marginalization of minorities. Accordingly, the international community should devise new strategies to deal with human rights violations in an international context dominated by nationalist leaders who favour their own ethnic people while severely repressing ethnic others.

Endnotes

- ¹ For more information, see <https://www.ohchr.org/EN/HRBodies/UPR/Pages/UPRMain.aspx>.
- ² Indigenous peoples are the descendants of the earliest known inhabitants of an area, especially those who have been invaded or colonized by a now dominant ethnic group of settlers.
- ³ In other words, nationalist leaders' responses are likely to be 'cheap talk'.
- ⁴ Although nationalism scholars disagree on how to define ethnicity (Bochsler et al. 2021; Green 2006), my quantitative research views it as the quality or fact of belonging to a social group made up of people who share a common cultural background or descent, a common history and a common homeland.
- ⁵ For more detailed concepts of civic versus ethnic nationalism, see Brubaker 1992; Greenfeld 1992; Smith 1991.
- ⁶ Donald Trump, for example, is nationalistic in that he 'is (still) President of white America' (Kaplan 2022). But he was not authoritarian in the context that he did not use state security apparatuses to explicitly repress ethnic minorities.
- ⁷ <https://www.un.org/en/global-issues/democracy>.
- ⁸ HRC resolution A/HRC/RES/5/1 states that the reviewed state can either support or note recommendations. For analytical simplicity, I consider the term, 'support', to be equivalent to 'accept' and 'note' to be equivalent to 'not accept' or 'reject'.
- ⁹ See <https://www.ohchr.org/EN/HRbodies/HRC/Pages/Home.aspx>.
- ¹⁰ See <https://www.ohchr.org/en/hr-bodies/upr/basic-facts>.
- ¹¹ The third review (2017–2022) was underway at the time of writing.
- ¹² For the COW country codes, see <https://correlatesofwar.org/datasets/cow-country-codes>.
- ¹³ Ordinary least squares regression does not alter the main findings of this study, so the results are reported to save space.
- ¹⁴ See v-dem.net/en/data/reference-materials-v10.
- ¹⁵ The V-Dem Project codebook states, 'the government is understood as the chief executive along with the cabinet, ministries, and top civil servants' (206).
- ¹⁶ For more information on human rights issues, see <https://www.upr-info.org/en>.
- ¹⁷ Conflict studies consider those five countries as major powers (e.g., Russett and Oneal 2001).

- ¹⁸ Other studies indicate that the relationship between democracy and human rights is not linear (e.g., Davenport and Armstrong 2004). Only liberal or advanced democracies are more likely to uphold human rights; below a certain threshold, democracy does not significantly improve human rights. However, quadratic regression uncovers no non-linear relationship, and thus, the results are not reported to save space. This finding is not surprising because my outcome variable measures whether to accept or reject a recommendation to address human rights conditions, not the actual improvements that the existing research has examined (e.g., Davenport 1999; Landman 2018; Yazici 2019).
- ¹⁹ When I use the V-Dem's democracy indicators including the electoral democracy index, the main findings of this study remain the same. For the purposes of comparability, this study presents estimates based on Polity, which is used in most authoritative democracy studies.
- ²⁰ To save space, the other theme groups are not included.
- ²¹ Adding fixed-effects to logit models results in a loss of observations, leaving fewer than 47,093.
- ²² Appendix S1 shows the estimated coefficients and standard errors.
- ²³ <https://www.amnesty.org/en/what-we-do/indigenous-peoples/>.
- ²⁴ Appendix S2 contains the estimated coefficients and standard errors.
- ²⁵ Appendix S3 displays the estimated coefficients and standard errors.
- ²⁶ On the consequences of human rights, see Choi and James (2017) and Choi et al. (2020).

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Supporting Information

Additional supporting information can be found online in the Supporting Information section.